

24-316 KENNEDY V. BRAIDWOOD MANAGEMENT, INC.

DECISION BELOW: 104 F.4th 930

LOWER COURT CASE NUMBER: 23-10326

QUESTION PRESENTED:

The U.S. Preventive Services Task Force (Task Force), which sits within the Public Health Service of the Department of Health and Human Services (HHS), issues clinical recommendations for preventive medical services, such as screenings and medications to prevent serious diseases. Under the Patient Protection and Affordable Care Act, Pub. L. No. 111-148, 124 Stat. 119, health insurance issuers and group health plans must cover certain preventive services recommended by the Task Force without imposing any cost-sharing requirements on patients. 42 U.S.C. 300gg-13(a)(1). The question presented is as follows:

Whether the court of appeals erred in holding that the structure of the Task Force violates the Appointments Clause, U.S. Const. Art. II, § 2, Cl. 2, and in declining to sever the statutory provision that it found to unduly insulate the Task Force from the HHS Secretary's supervision.

ORDER OF APRIL 24, 2025:

THE PARTIES ARE DIRECTED TO FILE SUPPLEMENTAL LETTER BRIEFS ADDRESSING THE FOLLOWING QUESTION: WHETHER CONGRESS HAS "BY LAW" VESTED THE SECRETARY OF THE DEPARTMENT OF HEALTH AND HUMAN SERVICES WITH THE AUTHORITY TO APPOINT MEMBERS OF THE UNITED STATES PREVENTIVE SERVICES TASK FORCE. U. S. CONST. ART. II, §2, CL. 2. THE BRIEFS SHOULD ADDRESS THIS COURT'S DECISIONS IN *UNITED STATES V. HARTWELL*, 6 WALL. 385 (1868), AND *UNITED STATES V. SMITH*, 124 U. S. 525 (1888). THE BRIEFS, NOT TO EXCEED 15 PAGES, ARE TO BE FILED SIMULTANEOUSLY WITH THE CLERK AND SERVED UPON OPPOSING COUNSEL ON OR BEFORE 2 P.M., MONDAY, MAY 5, 2025.

CERT. GRANTED 1/10/2025